



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2875: local regulation; prohibition; unmanned aircraft

WENINGER FLOOR AMENDMENT

1. Prohibits cities, towns and counties from adopting any ordinance, policy or rule that relates to the ownership or operation of a commercial drone delivery system.
2. Allows a city, town or county to enact an ordinance on land use approvals for taking off, docking and landing a commercial drone delivery system, rather than an unmanned aircraft, in or within a one hundred fifty-foot radius of the outer boundary of the area zoned for residential use.
3. Allows a city, town or county to enact an ordinance on taking off, docking or landing a commercial drone delivery system from a city, town or county owned facility or property.
4. Authorizes a city, town or county to require or enforce existing regulations that are not explicitly for a commercial drone delivery system.
5. Prohibits a city, town or county from withholding a permit or approval for operating, taking off, docking or landing a commercial drone delivery system in an area not zoned for residential use.
6. Stipulates the prohibition on unmanned aircraft regulations do not limit a city's, town's or county's authority to enforce applicable land use, site plan and safety regulations to the location of facilities used to operate unmanned aircraft or commercial drone delivery systems within one mile of a large hub airport's latitude and longitude as recorded by the federal aviation administration, if the regulations:
 - a. do not govern the navigation or operation of the unmanned aircraft; and
 - b. do not have the effect of prohibiting commercial drone delivery systems within the jurisdiction.
7. Defines *commercial drone delivery system* to mean an unmanned aircraft system engaged in the delivering of goods via drone and is approved to operate for that purpose by the federal aviation administration.

WENINGER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2875
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 9, chapter 4, article 8, Arizona Revised Statutes,
3 is amended by adding section 9-500.54, to read:

4 9-500.54. Prohibition on unmanned aircraft regulation:
5 exceptions; definitions

6 A. EXCEPT AS OTHERWISE PROVIDED BY LAW, A CITY OR TOWN MAY NOT
7 ENACT OR ADOPT ANY ORDINANCE, POLICY OR RULE THAT RELATES TO THE OWNERSHIP
8 OR OPERATION OF AN UNMANNED AIRCRAFT[.] [OR] UNMANNED AIRCRAFT SYSTEM [OR
9 COMMERCIAL DRONE DELIVERY SYSTEM] OR OTHERWISE ENGAGE IN REGULATING THE
10 OWNERSHIP OR OPERATION OF AN UNMANNED AIRCRAFT[.] [OR] UNMANNED AIRCRAFT
11 SYSTEM [OR COMMERCIAL DRONE DELIVERY SYSTEM]. ANY ORDINANCE, POLICY OR
12 RULE THAT VIOLATES THIS SUBSECTION, WHETHER ENACTED OR ADOPTED BY THE CITY
13 OR TOWN BEFORE OR AFTER AUGUST 6, 2016, IS VOID.

14 B. THIS SECTION DOES NOT:

15 1. PROHIBIT A CITY OR TOWN FROM ENACTING OR ADOPTING AN ORDINANCE
16 OR RULE ON ANY OF THE FOLLOWING:

17 (a) OPERATING OR USING A PUBLIC UNMANNED AIRCRAFT THAT IS OWNED BY
18 THE CITY OR TOWN.

19 (b) TAKING OFF OR LANDING A MODEL AIRCRAFT IN A PARK OR PRESERVE
20 THAT IS OWNED BY THE CITY OR TOWN IF EITHER OF THE FOLLOWING APPLIES:

21 (i) THERE ARE OTHER PARKS OR PRESERVES THAT ARE WITHIN THE CITY OR
22 TOWN AND THAT ARE AVAILABLE FOR OPERATING MODEL AIRCRAFT.

23 (ii) THE CITY OR TOWN HAS ONLY ONE PARK OR PRESERVE THAT IS WITHIN
24 THE CITY OR TOWN.

25 (c) LAND USE APPROVALS FOR TAKING OFF, DOCKING AND LANDING [~~AN~~
26 ~~UNMANNED AIRCRAFT~~] [A COMMERCIAL DRONE DELIVERY] SYSTEM IN AN AREA ZONED
27 FOR RESIDENTIAL USE OR WITHIN A ONE HUNDRED FIFTY-FOOT RADIUS OF THE OUTER
28 BOUNDARY OF THE AREA ZONED FOR RESIDENTIAL USE.

29 [(d) TAKING OFF, DOCKING OR LANDING A COMMERCIAL DRONE DELIVERY
30 SYSTEM FROM A CITY OR TOWN OWNED FACILITY OR PROPERTY.]

2. PROHIBIT A CITY OR TOWN FROM REQUIRING OR ENFORCING EXISTING REGULATIONS THAT ARE NOT EXPLICITLY FOR AN UNMANNED AIRCRAFT[.] [OR] UNMANNED AIRCRAFT SYSTEM [OR A COMMERCIAL DRONE DELIVERY SYSTEM].

3. ALLOW A CITY OR TOWN TO WITHHOLD ISSUING A PERMIT OR APPROVAL FOR OPERATING, TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT[.] [OR] UNMANNED AIRCRAFT SYSTEM [OR A COMMERCIAL DRONE DELIVERY SYSTEM] IN AN AREA THAT IS NOT ZONED FOR RESIDENTIAL USE.

[4. LIMIT A CITY'S OR TOWN'S AUTHORITY TO APPLY AND ENFORCE GENERALLY APPLICABLE ZONING, LAND USE, SITE PLAN, BUILDING, FIRE AND PUBLIC SAFETY REGULATIONS TO THE PHYSICAL LOCATION OF FACILITIES THAT ARE USED FOR TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT OR COMMERCIAL DRONE DELIVERY SYSTEM WITHIN ONE MILE OF A LARGE HUB AIRPORT'S LATITUDE AND LONGITUDE AS RECORDED IN THE FEDERAL AVIATION ADMINISTRATION'S MASTER AIRPORT RECORDS, IF THE REGULATIONS DO NOT GOVERN THE FLIGHT PATH, NAVIGATION OR OPERATION OF THE UNMANNED AIRCRAFT AND DO NOT HAVE THE EFFECT OF PROHIBITING COMMERCIAL DRONE DELIVERY SYSTEMS WITHIN THE JURISDICTION.]

C. FOR THE PURPOSES OF THIS SECTION:

[1. "COMMERCIAL DRONE DELIVERY SYSTEM" MEANS AN UNMANNED AIRCRAFT SYSTEM ENGAGED IN THE DELIVERING OF GOODS VIA DRONE AND IS APPROVED TO OPERATE FOR THAT PURPOSE BY THE FEDERAL AVIATION ADMINISTRATION.]

~~[1.]~~ [2.] "MODEL AIRCRAFT" MEANS AN UNMANNED AIRCRAFT THAT IS:

(a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.

(b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING THE MODEL AIRCRAFT.

(c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.

~~[2.]~~ [3.] "PUBLIC UNMANNED AIRCRAFT" MEANS AN UNMANNED AIRCRAFT OR UNMANNED AIRCRAFT SYSTEM THAT IS OPERATED BY A PUBLIC AGENCY FOR A GOVERNMENT-RELATED PURPOSE.

~~[3.]~~ [4.] "UNMANNED AIRCRAFT" MEANS AN AIRCRAFT, INCLUDING AN AIRCRAFT COMMONLY KNOWN AS A DRONE, THAT IS OPERATED WITHOUT THE POSSIBILITY OF DIRECT HUMAN INTERVENTION FROM WITHIN OR ON THE AIRCRAFT.

~~[4.]~~ [5.] "UNMANNED AIRCRAFT SYSTEM" MEANS AN UNMANNED AIRCRAFT AND ASSOCIATED ELEMENTS, INCLUDING ANY COMMUNICATION LINKS AND COMPONENTS THAT CONTROL THE UNMANNED AIRCRAFT.

Sec. 2. Title 11, chapter 2, article 4, Arizona Revised Statutes, is amended by adding section 11-256.31, to read:

11-256.31. Prohibition on unmanned aircraft; exceptions; definitions

A. EXCEPT AS OTHERWISE PROVIDED BY LAW, A COUNTY MAY NOT ENACT OR ADOPT ANY ORDINANCE, POLICY OR RULE THAT RELATES TO THE OWNERSHIP OR OPERATION OF AN UNMANNED AIRCRAFT[.] [OR] UNMANNED AIRCRAFT SYSTEM [OR COMMERCIAL DRONE DELIVERY SYSTEM] OR OTHERWISE ENGAGE IN REGULATING THE OWNERSHIP OR OPERATION OF AN UNMANNED AIRCRAFT[.] [OR] AN UNMANNED AIRCRAFT SYSTEM [OR COMMERCIAL DRONE DELIVERY SYSTEM]. ANY ORDINANCE, POLICY OR RULE THAT VIOLATES THIS SUBSECTION, WHETHER ENACTED OR ADOPTED BY THE COUNTY BEFORE OR AFTER AUGUST 6, 2016, IS VOID.

B. THIS SECTION DOES NOT:

1 1. PROHIBIT A COUNTY FROM ENACTING OR ADOPTING AN ORDINANCE OR RULE
2 ON ANY OF THE FOLLOWING:

3 (a) OPERATING OR USING A PUBLIC UNMANNED AIRCRAFT THAT IS OWNED BY
4 THE COUNTY.

5 (b) TAKING OFF OR LANDING A MODEL AIRCRAFT IN A PARK OR PRESERVE
6 THAT IS OWNED BY THE COUNTY IF EITHER OF THE FOLLOWING APPLIES:

7 (i) THERE ARE OTHER PARKS OR PRESERVES THAT ARE WITHIN THE COUNTY
8 AND THAT ARE AVAILABLE FOR OPERATING MODEL AIRCRAFT.

9 (ii) THE COUNTY HAS ONLY ONE PARK OR PRESERVE THAT IS WITHIN THE
10 COUNTY.

11 (c) LAND USE APPROVALS FOR TAKING OFF, DOCKING AND LANDING ~~[AN~~
12 ~~UNMANNED AIRCRAFT]~~ [A COMMERCIAL DRONE DELIVERY] SYSTEM IN AN AREA ZONED
13 FOR RESIDENTIAL USE OR WITHIN A ONE HUNDRED FIFTY-FOOT RADIUS OF THE OUTER
14 BOUNDARY OF THE AREA ZONED FOR RESIDENTIAL USE.

15 [(d) TAKING OFF, DOCKING OR LANDING A COMMERCIAL DRONE DELIVERY
16 SYSTEM FROM A COUNTY OWNED FACILITY OR PROPERTY.]

17 2. PROHIBIT A COUNTY FROM REQUIRING OR ENFORCING EXISTING
18 REGULATIONS THAT ARE NOT EXPLICITLY FOR AN UNMANNED AIRCRAFT~~[.]~~ ~~[OR]~~
19 UNMANNED AIRCRAFT SYSTEM [OR A COMMERCIAL DRONE DELIVERY SYSTEM].

20 3. ALLOW A COUNTY TO WITHHOLD ISSUING A PERMIT OR APPROVAL FOR
21 OPERATING, TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT~~[.]~~ ~~[OR]~~
22 UNMANNED AIRCRAFT SYSTEM [OR A COMMERCIAL DRONE DELIVERY SYSTEM] IN AN
23 AREA THAT IS NOT ZONED FOR RESIDENTIAL USE.

24 [4. LIMIT A COUNTY'S AUTHORITY TO APPLY AND ENFORCE GENERALLY
25 APPLICABLE ZONING, LAND USE, SITE PLAN, BUILDING, FIRE AND PUBLIC SAFETY
26 REGULATIONS TO THE PHYSICAL LOCATION OF FACILITIES THAT ARE USED FOR
27 TAKING OFF, DOCKING OR LANDING AN UNMANNED AIRCRAFT OR COMMERCIAL DRONE
28 DELIVERY SYSTEM WITHIN ONE MILE OF A LARGE HUB AIRPORT'S LATITUDE AND
29 LONGITUDE AS RECORDED IN THE FEDERAL AVIATION ADMINISTRATION'S MASTER
30 AIRPORT RECORDS. IF THE REGULATIONS DO NOT GOVERN THE FLIGHT PATH,
31 NAVIGATION OR OPERATION OF THE UNMANNED AIRCRAFT AND DO NOT HAVE THE
32 EFFECT OF PROHIBITING COMMERCIAL DRONE DELIVERY SYSTEMS WITHIN THE
33 JURISDICTION.]

34 C. FOR THE PURPOSES OF THIS SECTION:

35 [1. "COMMERCIAL DRONE DELIVERY SYSTEM" MEANS AN UNMANNED AIRCRAFT
36 SYSTEM ENGAGED IN THE DELIVERING OF GOODS VIA DRONE AND IS APPROVED TO
37 OPERATE FOR THAT PURPOSE BY THE FEDERAL AVIATION ADMINISTRATION.]

38 ~~[1.]~~ [2.] "MODEL AIRCRAFT" MEANS AN UNMANNED AIRCRAFT THAT IS:

39 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.

40 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
41 THE MODEL AIRCRAFT.

42 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.

43 ~~[2.]~~ [3.] "PUBLIC UNMANNED AIRCRAFT" MEANS AN UNMANNED AIRCRAFT OR
44 UNMANNED AIRCRAFT SYSTEM THAT IS OPERATED BY A PUBLIC AGENCY FOR A
45 GOVERNMENT-RELATED PURPOSE.

46 ~~[3.]~~ [4.] "UNMANNED AIRCRAFT" MEANS AN AIRCRAFT, INCLUDING AN
47 AIRCRAFT COMMONLY KNOWN AS A DRONE, THAT IS OPERATED WITHOUT THE
48 POSSIBILITY OF DIRECT HUMAN INTERVENTION FROM WITHIN OR ON THE AIRCRAFT.

1 ~~[4.]~~ [5.] "UNMANNED AIRCRAFT SYSTEM" MEANS AN UNMANNED AIRCRAFT AND
2 ASSOCIATED ELEMENTS, INCLUDING ANY COMMUNICATION LINKS AND COMPONENTS THAT
3 CONTROL THE UNMANNED AIRCRAFT.

4 Sec. 3. Section 13-3729, Arizona Revised Statutes, is amended to
5 read:

6 13-3729. Unlawful operation of model or unmanned aircraft;
7 state preemption; classification; definitions

8 A. It is unlawful for a person to operate a model aircraft or a
9 civil unmanned aircraft if the operation:

10 1. Is prohibited by a federal law or regulation that governs
11 aeronautics, including federal aviation administration regulations.

12 2. Interferes with a law enforcement, firefighter or emergency
13 services operation.

14 B. It is unlawful for a person to operate or use an unmanned
15 aircraft or unmanned aircraft system to intentionally photograph or loiter
16 over or near a critical facility in the furtherance of any criminal
17 offense.

18 ~~C. Except as authorized by law, a city, town or county may not~~
19 ~~enact or adopt any ordinance, policy or rule that relates to the ownership~~
20 ~~or operation of an unmanned aircraft or unmanned aircraft system or~~
21 ~~otherwise engage in the regulation of the ownership or operation of an~~
22 ~~unmanned aircraft or an unmanned aircraft system. Any ordinance, policy~~
23 ~~or rule that violates this subsection, whether enacted or adopted by the~~
24 ~~city, town or county before or after August 6, 2016, is void.~~

25 ~~D.~~ C. This section does not:

26 1. Apply to a person or entity that is authorized or allowed by the
27 federal aviation administration to operate or use an unmanned aircraft
28 system if the person's or entity's operation or use complies with the
29 authorization granted to the person or entity or with federal aviation
30 administration rules.

31 ~~2. Prohibit a city, town or county from enacting or adopting~~
32 ~~ordinances or rules on the operation or use of a public unmanned aircraft~~
33 ~~that is owned by the city, town or county.~~

34 ~~3. Prohibit a city, town or county from enacting or adopting~~
35 ~~ordinances or rules that regulate the takeoff or landing of a model~~
36 ~~aircraft in a park or preserve owned by the city, town or county if:~~

37 ~~(a) There are other parks or preserves that are within the city,~~
38 ~~town or county and that are available for model aircraft operation.~~

39 ~~(b) The city, town or county only has one park or preserve that is~~
40 ~~within the city, town or county.~~

41 ~~4.~~ 2. Apply to the operation of an unmanned aircraft, including a
42 public unmanned aircraft, by a first responder as defined in section
43 36-661 while acting in the first responder's official capacity or an
44 emergency worker while engaged in or supporting authorized emergency
45 management activities or performing emergency functions pursuant to title
46 26, chapter 2.

1 ~~F.~~ D. A violation of subsection B of this section is a class 6
2 felony, except that a second or subsequent violation is a class 5 felony.
3 A violation of subsection A of this section is a class 1 misdemeanor.

4 ~~F.~~ E. For the purposes of this section:

5 1. "Civil unmanned aircraft" means an unmanned aircraft or unmanned
6 aircraft system that is operated by a person for any purpose other than
7 strictly for hobby or recreational purposes, including commercial
8 purposes, or in furtherance of or incidental to any business or media
9 service or agency.

10 2. "Commercial purposes" means the use of an unmanned aircraft in
11 return for financial compensation and includes aerial photography, aerial
12 mapping or geospatial imaging.

13 3. "Critical facility" means any of the following:

14 (a) A petroleum or alumina refinery.

15 (b) A petroleum, chemical or rubber production, transportation,
16 storage or processing facility.

17 (c) A chemical manufacturing facility.

18 (d) A water or wastewater treatment facility and water development,
19 distribution or conveyance system, including a dam.

20 (e) An electric generation facility, as defined in section
21 42-14156, and any associated substation or switchyard.

22 (f) An electrical transmission or distribution substation.

23 (g) An electrical transmission line of at least sixty-nine thousand
24 volts.

25 (h) An electronic communication station or tower.

26 (i) An energy control center.

27 (j) A distribution operating center.

28 (k) A facility that transfers or distributes natural gas, including
29 a compressor station, regulator station, city gate station or pressure
30 limiting station or a liquefied natural gas facility or supplier tap
31 facility.

32 (l) Any railroad infrastructure or facility.

33 (m) A federal, state, county or municipal court.

34 (n) A public safety or emergency operation facility.

35 (o) A federal, state, county or municipal jail or prison or other
36 facility in which persons are incarcerated.

37 (p) A federal or state military installation or facility.

38 (q) A hospital that receives air ambulance services.

39 4. "Model aircraft" ~~has the same meaning prescribed in section 336~~
40 ~~of the FAA modernization and reform act of 2012 (P.L. 112-95), as amended~~
41 MEANS AN UNMANNED AIRCRAFT THAT IS:

42 (a) CAPABLE OF SUSTAINED FLIGHT IN THE ATMOSPHERE.

43 (b) FLOWN WITHIN THE VISUAL LINE OF SIGHT OF THE PERSON OPERATING
44 THE MODEL AIRCRAFT.

45 (c) FLOWN FOR HOBBY OR RECREATIONAL PURPOSES.

46 5. "Person" means a corporation, firm, partnership, association,
47 individual or organization or any other group acting as a unit.

House Amendments to H.B. 2875

1 6. "Public unmanned aircraft" means an unmanned aircraft or
2 unmanned aircraft system that is operated by a public agency for a
3 government-related purpose.

4 7. "Unmanned aircraft" means an aircraft, including an aircraft
5 commonly known as a drone, that is operated without the possibility of
6 direct human intervention from within or on the aircraft.

7 8. "Unmanned aircraft system" means an unmanned aircraft and
8 associated elements, including any communication links and components that
9 control the unmanned aircraft.

10 Enroll and engross to conform

11 Amend title to conform

JEFF WENINGER

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